

Form No: HCJD/C-121

ORDER SHEET
LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Criminal Misc. No.3033-B/2025.

Umair Altaf.

Versus The State etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
	15.05.2025.	Malik Ijaz Hussain Mahay, Advocate for the petitioner. Ms. Ferdous Jamal, Assistant Attorney General for Pakistan. Mr. Tariq Mehmood Sipra, Assistant Director NCCIA, Cyber Zone, Multan and Ishaq SI with record.

Petitioner (Umar Altaf) being arrayed as an accused in case FIR No.175/2025, dated 12.03.2025, for offences under Section 295-A, 298-A of PPC and 11 of Prevention of Electronic Crimes Act, 2016, registered with Police Station *Thaingi*, District *Vehari* has sought for his post-arrest bail after refusal of the same from the Court of learned Magistrate Section 30, *Vehari* vide order dated 22.03.2025 and learned Addl. Sessions Judge, *Vehari* vide order dated 27.03.2025.

2. Precisely, the case of prosecution as unfolded from the crime report was that on 13.03.2025, petitioner made a video of derogatory/blasphemous remarks in respect of companions of Holly Prophet (P.B.U.H) and published/uploaded the same on his *Tik Tok* account “Umairthaheem1046”.

3. Bail was mainly sought on the grounds that petitioner was innocent and was falsely involved in this case with mala-fide of the agency in connivance with the complainant party; that case of the petitioner was one of further inquiry; that alleged offence do not fall within the ambit of prohibitory clause of section 497 of

Cr.P.C.; that no recovery has been effected from the petitioner; that the petitioner was behind the bars since his arrest and his person was no more required to the police for the purpose of recovery. Next contended that cognizance of the offence under Section 295-A of PPC can only be taken on a complaint made by Federal Government or by an officer authorized by Federal Government, as such whole of the proceedings from the lodgment of FIR to all the investigational steps, were nullity in the eye of law being in flagrant violation of Section 196 of Cr.P.C., hence, the very FIR was liable to be quashed.

4. Bail was opposed by the learned Deputy Prosecutor General, Punjab vehemently and rigorously on variety of the grounds. It was further maintained that petitioner was specifically named in the FIR and during the course of investigation, he was found fully involved in the commission of crime; that sufficient incriminating material was available against the petitioner to connect him with the commission of offence; that the act of the petitioner was fatal for the society.

5. Before touching the merits of the case, I think it appropriate to adhere to the legal objection raised by learned counsel for petitioner on the strength of Section 196 of Cr.P.C.

So far as question of applicability of Section 196 of Cr.P.C. was concerned, it mandates that cognizance of certain offences including Section 295-A of PPC can be taken only on a complaint made by Federal Government or Provincial Government concerned or some official authorized by either of the governments in this behalf. At this stage, it appears to

be appropriate to have a look of the above provision of law, which is being produced below for the facility of reference.

196. Prosecution for offence against the State. *No Court shall take cognizance of any offence punishable under Chapter VI or IX-A of the Pakistan Penal Code (except Section 127), or punishable under Section 108-A, or Section 153-A, or Section 294-A, or Section 295-A or Section 505 of the same Code, unless upon a complaint made by the order of, or under authority from, the Federal Government or the Provincial Government concerned, or some officer empowered in this behalf by either of the two Governments.*

6. Said provision of Section 196 of Cr.P.C. cannot be read in isolation. It has always to be read in conjunction with Section 230 of Cr.P.C., which speaks as under:-

230. Stay of proceedings if prosecution of offence in altered charge required previous sanction. *If the offence stated in the new or altered or added charge is one for the prosecution of which previous sanction is necessary, the case shall not be proceeded with until such sanction is obtained, unless sanction has already been obtained for a prosecution on the same facts as those on which the new or altered charge is found.*

7. It appears from the very language of said provision of Section 196 of Cr.P.C. that it deals with the stage of taking the cognizance by the Court. Cognizance by the Court is taken after report under Section 173 of Cr.P.C. is received. Compliance of said condition precedent was not mandatory for the lodgment of FIR and commencement of investigation. Said condition precedent would be required at the time of submission of report under Section 173 of Cr.P.C. to

confer jurisdiction upon the learned trial Court to take the cognizance.

8. If report under Section 173 of Cr.P.C. is submitted before the court, which is not accompanied by any complaint either of the Federal Government or Provincial Government as required under Section 196 of Cr.P.C., the court shall follow the provision of Section 230 of Cr.P.C. and shall stop the proceedings till the above complaint from either of the Governments is received.

I have sought guidance in this regard from a case titled “State of Karnataka and Anr v. Pastor P. Raju” (AIR 2006 Supreme Court 2825).

In the above referred case apex court of India after making long discussion upon the relevant provisions of Cr.P.C. reached the conclusion that If a criminal case is registered, investigation of the offence is done and the police submits a report as a result of such investigation before a Magistrate without the previous sanction of the Central Government or of the State Government or of the District Magistrate, there will be no violation of Section 196(1-A) of Cr.P.C. (Indian Cr.P.C.) and no illegality of any kind would be committed.

The apex Court reversed the judgment rendered by Karnataka High Court, whereby proceedings were ordered to be quashed on account of non-observance of said provision of law.

Reference in this regard can be had further from the case titled “Mian Manzoor Ahmad Wattoo vs. Government of Pakistan, (1997 P.Cr.LJ 836) ‘Malik Shoukat Ali Dogar and 12 other V. Ghulam Qasim Khan Khakwani’ (PLD 1994 Supreme court 281).

9. In the said cases dictum laid by the honourable superior Courts was that Section 196 of Cr.P.C. does not debar to register and investigate the case in order to come to the truth and the provision of Section 196 of Cr.P.C. would come into play when the court takes cognizance of the offence, because the Function of the court would commence only when challan is submitted to it for trial.

10. Contention of the learned counsel was not in consonance with the law laid down by Hon'ble Superior Courts, hence rejected by me out-rightly. I feel no hesitation in holding that proceedings are not vitiated due to the non-observance of Section 196 of Cr.P.C. at this preliminary stage. Petitioner cannot claim any premium on above score.

11. After hearing the arguments of the learned counsel for the petitioner, learned Assistant Attorney General, for Pakistan and perusal of record, it was noticed by me that petitioner was specifically named in the FIR which was lodged with promptitude. He was found fully connected with the crime during the course of investigation. His prima facie involvement in the offence could not be dislodged. There was nothing on the file to suggest that the case was requiring further inquiry. The petitioner led to the recovery of cell phone (VIVO V.40) containing the blasphemous contents, which has already been sent for forensic analysis to the office of Punjab Forensic Science Agency, Multan. Section 295-A of PPC was punishable upto ten years imprisonment, as such same was falling within embargo contained in Section 497 of Cr.P.C.

12. For the reasons supra, no case for the enlargement of the petitioner on bail is made out. Petition has no merit and is **dismissed**.

13. Needless to mention that any observations made in the above order are tentative in nature and shall not influence the trial Court in any manner.

(Tanveer Ahmad Sheikh)
Judge

Approved for reporting.

Judge

Muhammad Ajmal*